

25STCV27418 25STCV27418

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Case Number: 25STCV27418 Hearing Date: September 28, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion to Compel

Arbitration

The Motion to Compel Arbitration is granted, and the action is stayed pending completion of arbitration.

BACKGROUND

Plaintiff Artin Aghakiant (Plaintiff) filed this action against FCA US, LLC (FCA) and Huntington Beach Chrysler Dodge Jeep Ram (Dealer), alleging that he purchased a 2023 Ram 2500 that manifested defects FCA failed to repair under its warranty.

The causes of action are: (1) Violation of Civil Code Section 1793.2, Subdivision (d); (2) Violation of Civil Code Section 1793.2, Subdivision (b); (3) Violation of Civil Code Section 1793.2, Subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement Concealment.

FCA filed a Motion to Compel Arbitration and Stay Action. No Opposition was filed.

LEGAL STANDARD

Where a party to a written arbitration agreement refuses to arbitrate, "the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists," unless a statutory exception applies. (Code Civ. Proc., § 1281.2.)

“The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236 (Pinnacle).) “For purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication.” (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218.)

ANALYSIS

I. Agreement to Arbitrate

FCA contends that Plaintiff signed a standalone Agreement to Arbitrate when he purchased the vehicle and has refused FCA's demands to arbitrate. FCA also relies on a parallel arbitration provision in the Warranty Information booklet and on Plaintiff's use of that warranty for repairs.

FCA established both an agreement to arbitrate and Plaintiff's refusal to arbitrate. First, FCA submitted a one-page Agreement to Arbitrate, dated March 24, 2024, that bears a customer signature above Plaintiff's printed name. (Crampton Decl., ¶ 4, Ex. B; Gahan Decl., Ex. B.) Plaintiff purchased the vehicle the same day. (Crampton Decl., ¶ 3, Ex. A.) Second, the Agreement provides that disputes between Plaintiff and FCA “will not be decided by a judge or jury but instead by a single arbitration administered by the American Arbitration Association (AAA).” (Crampton Decl., Ex. B.) Third, the Agreement provides that it becomes binding unless Plaintiff opts out within 30 days by letter to FCA's Office of the General Counsel. (Ibid.) Finally, FCA's counsel demanded arbitration in writing and gave Plaintiff's counsel a copy of the Agreement. (Gahan Decl., ¶¶ 4-5, Exs. B, C.) Plaintiff's counsel declined to arbitrate and did not respond to the written demand. (Id., ¶¶ 3-4.)

Plaintiff offered no evidence disputing the signature or showing an opt-out. Therefore, the Court concludes that Plaintiff and FCA entered into an agreement to arbitrate and that Plaintiff refused to arbitrate. Because the Court compels arbitration under the standalone Agreement, it declines to reach FCA's alternative reliance on the Warranty Information booklet and on Plaintiff's use of the warranty.

II. Scope

FCA contends that Plaintiff's claims fall within the Agreement because they arise from the vehicle's warranty and relate to the parties' relationship.

Plaintiff did not respond to the scope argument.

The Agreement covers "any dispute arising out of or relating to any aspect of the relationship between you and FCA," including "claims arising out of your warranty and claims arising before this Agreement, such as claims related to statements about our products." (Crampton Decl., Ex. B.)

Every claim Plaintiff asserts against FCA falls within the Agreement. First, in the first three causes of action, Plaintiff alleges that FCA failed to replace the vehicle or make restitution after a reasonable number of repair attempts, failed to complete warranty repairs within 30 days, and failed to supply its repair facilities with sufficient service literature and replacement parts. (Compl., ¶¶ 41, 47, 52.) Second, Plaintiff alleges in the fourth cause of action a breach of the implied warranty of merchantability that accompanied the sale. (Compl., ¶¶ 55-57.) Thus, each of the first four claims arises out of FCA's warranty obligations. Finally, in the sixth cause of action, Plaintiff alleges that FCA knew of and concealed an engine defect when the vehicle was sold to Plaintiff. (Compl., ¶¶ 65-68.) That claim relates to the parties' relationship, and the Agreement expressly includes claims arising before it.

Accordingly, the Court orders Plaintiff and FCA to arbitrate the first, second, third, fourth, and sixth causes of action.

III. Stay

FCA asks the Court to stay the action pending completion of arbitration and to stay proceedings as to all parties while the Motion is pending.

Plaintiff did not respond to the stay request.

Code of Civil Procedure section 1281.4 provides, "If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order

to arbitrate or until such earlier time as the court specifies. [¶] If the issue which is the controversy subject to arbitration is severable, the stay may be with respect to that issue only."

Here, the Court has ordered arbitration of Plaintiff's claims against FCA. Therefore, section 1281.4 requires a stay of those claims.

The fifth cause of action, for negligent repair, is asserted only against Dealer. (Compl., ¶¶ 59-63.)

However, the negligent repair claim is not severable from the arbitrated claims. First, Plaintiff alleges that the vehicle has engine and steering defects and that FCA failed to conform it to the warranty after a reasonable number of repair opportunities. (Compl., ¶¶ 12, 41.) Second, Plaintiff alleges that Dealer failed to properly repair the same vehicle, causing Plaintiff damage. (Compl., ¶¶ 60, 62-63.) Thus, the arbitrator and the Court would each have to decide whether the vehicle's problems stem from a warranty nonconformity or from a negligent repair, and what damages each caused. Proceeding on the negligent repair claim while the arbitration is pending would risk inconsistent findings on those questions. Accordingly, the entire action is stayed pending completion of arbitration.

CONCLUSION

The Motion to Compel Arbitration is granted, and the action is stayed pending completion of arbitration.